Pakistan and India's obligations to them—was literally a core political aim of the party from the day of the Jan Sangh's birth.

Interestingly, the 1950s debate on Hindu refugees also led to the First Amendment of the Constitution, which introduced more restrictions on free speech. The Supreme Court, on 26 May 1950, had lifted a ban on the leftist Bombay publication *Cross Roads* (which had been critical of Nehru's foreign policy) and also nullified a pre-censorship order on the RSS publication *Organiser* (which was critical of Nehru's refugee policy) in Delhi. The apex court ruled in a 5–1 judgement that such restrictions on free speech were unconstitutional.[74] At the time, the original Article 19(2) of the Constitution, which guaranteed free speech, had very limited restrictions. The lawyer and scholar Abhinav Chandrachud has shown that between March and June 1950, worried about open talk of war, Nehru wrote two letters to Patel complaining about 'Hindu Mahasabha propaganda' and 'the Calcutta press as well as Syama Prasad Mookerjee' as 'chief culprit[s]' that could harm the Delhi Pact with Pakistan. Because of the Supreme Court's unambiguous judgement, Patel wrote back on 3 July 1950 that there were 'no legal powers to deal with either Press or men like Syama Prasad Mookerjee'. He suggested that they would soon have to 'consider constitutional amendments'. Nehru then wrote in October 1950 to Law Minister B.R. Ambedkar with an opinion that the right to free speech needed to be amended. Ambedkar agreed, and Parliament passed the First Amendment to the Constitution on 2 June 1951.[75] Among the new restrictions to free speech were imperilling 'public order', inciting an offence or affecting 'friendly relations with foreign States'.[76]

The Early Hard-coding of Kashmir into the Party Agenda

In the earliest example of the BJP's present position on Kashmir, on the very first day of the establishment of the Jan Sangh, the party president announced that India should withdraw the Kashmir issue from the United Nations (UN) as 'the state was an integral part of India' and that the part of Kashmir under Pakistan administration should be liberated.[77] The Modi government's lightning strike on